

Treasury, as being employment to which it is expedient that the provisions of this section should apply.

(3) Section twelve of the Superannuation Act, 1859, is 22 Vict. c. 62. hereby repealed, but nothing in this repeal shall affect the rights of any officer who, before the passing of this Act, has been transferred from employment entitling him to a superannuation allowance to public employment under the Crown not so entitling him, nor shall this repeal affect the said section as applied by any other enactment.

5. Section four of the Superannuation Act, 1859, and section three of the Superannuation Act, 1884 (which relate to superannuation allowances of persons holding professional and other special offices), are hereby repealed, but nothing in this repeal shall affect the rights of any person who, before the date of the passing of this Act, has been appointed to an office to which an order, warrant, or minute of the Treasury, issued under either of the said sections, applied. Repeal of s. 4 of the Act of 1859 and s. 3 of the Act of 1884 as to added years. 47 & 48 Vict. c. 37.

6. Subsection (2) of section seven of the Superannuation Act, 1887 (which provides for the reduction of the pension, superannuation, and other allowance payable to a person when that person is or becomes a lunatic towards whose maintenance a contribution is made out of moneys provided by Parliament), is hereby repealed. Repeal of s. 7 (2) of the Act of 1887.

7. This Act may be cited as the Superannuation Act, 1914; Short title. and the Superannuation Acts, 1834 to 1909, and this Act may be cited together as the Superannuation Acts, 1834 to 1914.

CHAPTER 87.

An Act to make provision with respect to penalties for Trading with the Enemy, and other purposes connected therewith. [18th September 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Any person who during the present war trades or has, since the fourth day of August nineteen hundred and fourteen, traded with the enemy within the meaning of this Act shall be guilty of a misdemeanour, and shall— Penalties for trading with enemy.

(a) on conviction under the Summary Jurisdiction Acts, be liable to imprisonment with or without hard labour for a term not exceeding twelve months, or to a fine not exceeding five hundred pounds, or to both such imprisonment and fine; or

- (b) on conviction on indictment, be liable to penal servitude for a term not exceeding seven or less than three years or to imprisonment with or without hard labour for a term not exceeding two years, or to a fine, or to both such penal servitude or imprisonment and fine;

and the court may in any case order that any goods or money, in respect of which the offence has been committed, be forfeited.

(2) For the purposes of this Act a person shall be deemed to have traded with the enemy if he has entered into any transaction or done any act which was, at the time of such transaction or act, prohibited by or under any proclamation issued by His Majesty dealing with trading with the enemy for the time being in force, or which at common law or by statute constitutes an offence of trading with the enemy:

Provided that any transaction or act permitted by or under any such proclamation shall not be deemed to be trading with the enemy.

(3) Where a company has entered into a transaction or has done any act which is an offence under this section, every director, manager, secretary, or other officer of the company who is knowingly a party to the transaction or act shall also be deemed guilty of the offence.

(4) A prosecution for an offence under this section shall not be instituted except by or with the consent of the Attorney-General:

Provided that the person charged with such an offence may be arrested and a warrant for his arrest may be issued and executed, and such person may be remanded in custody or on bail notwithstanding that the consent of the Attorney-General to the institution of the prosecution for the offence has not been obtained, but no further or other proceedings shall be taken until that consent has been obtained.

(5) Where an act constitutes an offence both under this Act and under any other Act, or both under this Act and at common law, the offender shall be liable to be prosecuted and punished under either this Act or such other Act, or under this Act or at common law, but shall not be liable to be punished twice for the same offence.

Power to
inspect books
and docu-
ments.

2.—(1) If a justice of the peace is satisfied, on information on oath laid on behalf of a Secretary of State or the Board of Trade, that there is reasonable ground for suspecting that an offence under this Act has been or is about to be committed by any person, firm, or company, he may issue a warrant authorising any person appointed by a Secretary of State or the Board of Trade and named in the warrant to inspect all books or documents belonging to or under the control of that person, firm, or company, and to require any person able to give any information with respect to the business or trade of that person,

firm, or company to give that information, and if accompanied by a constable to enter and search any premises used in connexion with the business or trade, and to seize any such books or documents as aforesaid :

Provided that when it appears to a Secretary of State or the Board of Trade that the case is one of great emergency and that in the interests of the State immediate action is necessary, a Secretary of State or the Board of Trade may, by written order, give to a person appointed by him or them the like authority as may be given by a warrant of a justice under this subsection.

(2) Where it appears to the Board of Trade—

- (a) in the case of a firm, that one of the partners in the firm was immediately before or at any time since the commencement of the present war a subject of, or resident or carrying on business in, a state for the time being at war with His Majesty ; or
- (b) in the case of a company, that one-third or more of the issued share capital or of the directorate of the company immediately before or at any time since the commencement of the present war was held by or on behalf of or consisted of persons who were subjects of, or resident or carrying on business in, a state for the time being at war with His Majesty ; or
- (c) in the case of a person, firm or company, that the person was or is, or the firm or company were or are, acting as agent for any person, firm, or company trading or carrying on business in a state for the time being at war with His Majesty ;

the Board of Trade may, if they think it expedient for the purpose of satisfying themselves that the person, firm or company are not trading with the enemy, by written order, give to a person appointed by them, without any warrant from a justice, authority to inspect all books and documents belonging to or under the control of the person, firm or company, and to require any person able to give information with respect to the business or trade of that person, firm or company, to give that information.

For the purposes of this subsection, any person authorised in that behalf by the Board of Trade may inspect the register of members of a company at any time, and any shares in a company for which share warrants to bearer have been issued shall not be reckoned as part of the issued share capital of the company.

(3) If any person having the custody of any book or document which a person is authorised to inspect under this section refuses or wilfully neglects to produce it for inspection, or if any person who is able to give any information which may be

required to be given under this section refuses or wilfully neglects when required to give that information, that person shall on conviction under the Summary Jurisdiction Acts be liable to imprisonment with or without hard labour for a term not exceeding six months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

Power of
Board of Trade
to apply for
receiver in
certain cases.

3. Where it appears to the Board of Trade in reference to any firm or company—

- (a) that an offence under this Act has been or is likely to be committed in connexion with the trade or business thereof; or
- (b) that the control or management thereof has been or is likely to be so affected by the state of war as to prejudice the effective continuance of its trade or business and that it is in the public interest that the trade or business should continue to be carried on;

the Board of Trade may apply to the High Court for the appointment of a controller of the firm or company, and the High Court shall have power to appoint such a controller, for such time and subject to such conditions and with such powers as the court thinks fit, and the powers so conferred shall be either those of a receiver and manager or those powers subject to such modifications, restrictions or extensions as the court thinks fit (including, if the court considers it necessary or expedient for enabling the controller to borrow money, power, after a special application to the court for that purpose, to create charges on the property of the firm or company in priority to existing charges).

The court shall have power to direct how and by whom the costs of any proceedings under this section, and the remuneration, charges, and expenses of the controller, shall be borne, and shall have power, if it thinks fit, to charge such costs, charges, and expenses on the property of the firm or company in such order of priority, in relation to any existing charges thereon, as it thinks fit.

Short title and
construction.

4.—(1) This Act may be cited as the Trading with the Enemy Act, 1914.

(2) In this Act the expression “Attorney-General” means the Attorney or Solicitor-General for England, and as respects Scotland means the Lord Advocate, and as respects Ireland means the Attorney or Solicitor-General for Ireland.

(3) In the application of this Act to Scotland the Secretary for Scotland shall be substituted for a Secretary of State, and the Court of Session shall be substituted for the High Court; the court exercising summary jurisdiction shall be the sheriff court; references to a justice of the peace shall include references to the sheriff and to a burgh magistrate; and references to a receiver and manager shall be construed as references to a judicial factor.

(4) In the application of this Act to Ireland, the Lord Lieutenant shall be substituted for a Secretary of State.

(5) Anything authorised under this Act to be done by the Board of Trade may be done by the President or a Secretary or Assistant Secretary of the Board, or any person authorised in that behalf by the President of the Board.

CHAPTER 88.

An Act to suspend the operation of the Government of Ireland Act, 1914, and the Welsh Church Act, 1914.

[18th September 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Notwithstanding anything in the Government of Ireland Act, 1914, no steps shall be taken to put that Act into operation, and notwithstanding anything in the Welsh Church Act, 1914, the date of disestablishment under that Act shall be postponed, until the expiration of twelve months from the date of the passing of those Acts respectively, or, if at the expiration of those twelve months the present war has not ended, until such later date (not being later than the end of the present war) as may be fixed by His Majesty by Order in Council ; and the provisions of those Acts shall have effect accordingly.

Suspension of the operation of the Government of Ireland Act, 1914, and the Welsh Church Act, 1914.
4 & 5 Geo. 5. c. 90.
4 & 5 Geo. 5. c. 91.

(2) In this Act, the Government of Ireland Act, 1914, means any Act which becomes law during the present session, and which may be cited by that short title ; and the Welsh Church Act, 1914, means any Act which becomes law during the present session and which may be cited by that short title.

2. This Act may be cited as the Suspensory Act, 1914.

Short title.

CHAPTER 89.

An Act to prevent the Disposal or Pledging of Certificates, Naval Uniforms, or other Property, and for purposes connected therewith. [18th September 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Section one hundred and fifty-six of the Army Act (which imposes a penalty on purchasing from soldiers regimental necessaries, equipment, stores, &c.) shall apply to persons

Application to navy of provisions of Army Act as